

Mohan Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 19 November 2013 · Writ-C No. 62929 of 2013 · **Writ disposed; consumer relegated to Clause 6.5 complaint.**

HEADNOTE

A consumer challenging an electricity bill that included miscellaneous charges was relegated to the complaint remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench held that the proper forum is the Executive Engineer, who may consider the complaint, and disposed of the writ without examining the bill on merits.

FACTUAL SUMMARY

Mohan Singh, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., invoked the writ jurisdiction of the Allahabad High Court against an electricity bill dated 31 July 2012. His grievance was that miscellaneous charges had been included in that bill. The petition was listed before a Division Bench. Counsel for the petitioner and counsel for the distribution company were heard on whether a writ lay against the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

complaint-to-executive-engineer

HOLDING

A consumer aggrieved by an electricity bill that includes miscellaneous charges must file a complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who may consider it; the writ is disposed of on that observation without a merits decision on the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer challenging an electricity bill that included miscellaneous charges was relegated to the complaint remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MISCELLANEOUS CHARGES IN THE BILL DATED 31.7.2012 WERE LAWFUL

Writ disposed without examining the bill; Executive Engineer to consider a Clause 6.5 complaint. ¶ 1